



File No.: EXP202401743

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 22, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On December 22, 2023, a complaint was received by this Agency filed by Ms. A.A.A. (hereinafter, the complainant) against TELEFÓNICA DE ESPAÑA, S.A.U. (hereinafter, the respondent) for not having adequately addressed her right of access.

The complainant indicates that on October 2, 2023, she requested access to all her personal data (processing, reports, and records of calls made by her) from the respondent company (through the designated channel), in order to justify a problem she has been experiencing for the past 2 years. The respondent company requested a copy of her ID, which was provided by the complainant. After one month, the complainant received an email from the respondent informing her that the deadline had been extended by 2 more months.

The complainant again requested access to her data, receiving a response from the company indicating that they had received her request for data deletion, to which she informed them that she had not exercised such a right. The company responded by extending the deadline again. The complainant threatened to report the respondent company, receiving a response from them stating that due to human error, her data had been deleted, and therefore there was no evidence of the malpractice that the complainant had suffered at the company.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent submitted a written response dated February 26, 2024, in which they acknowledged having received the complainant's request exercising her right of access, having requested a copy of her ID, which was provided by the complainant, and having erroneously responded on November 27, 2023, to an exercise of the right of deletion.

They state that they ultimately addressed the right of access on December 21, 2023 (providing a copy of it). In the written response, only specific information concerning her name and surname, ID, postal address, and email address was provided to the complainant, without supplying the rest of the information requested by the complainant or offering any explanation for not providing this information. In their response to the transfer of the complaint, the respondent indicated that the complainant is no longer their client and therefore only retains limited personal data derived from the contractual relationship they maintained, solely to address potential liabilities arising from the contract and during the statute of limitations for these. They do not specify which data of the complainant they retain to verify whether it indeed matches the information provided to the complainant.

Finally, they mention a conflict with the complainant regarding a device, which the respondent indicates has been resolved in favor of the complainant (they provide a corrective invoice evidencing the refund of the amount paid by the complainant).

The respondent has sent an explanatory letter to the complainant, of which they provide a copy.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied because the access provided was limited to her identifying data, without having provided all that was requested by the complainant, nor having explained, if applicable, the reason for not providing them when addressing the access. Consequently, on March 22, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days.

The respondent indicated that “On October 9, 2023, in order to verify the identity of the person sending the email, information about the ID was requested to ensure that they were indeed dealing with the data subject, that personal data was not being improperly disclosed to third parties, and that no harm would be caused to a third party.

Subsequently, and as recorded in the documentation held by the AEPD, due to a specific error, a response was given on November 27 referring to a right of deletion.

On December 19, 2023, a letter was sent to the complainant informing her that an extension of the response deadline to her exercise of rights was necessary, considering the complexity of the case.

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On December 21, 2023, a response was provided to the exercise of the right of access that the complainant had requested. Let us remember that this document was also submitted as Annex Document 1 in the response provided by this party on February 26, following the transfer of the complaint and request for information. In short, it is essential for the AEPD to take into account that Telefónica duly responded to the complainant regarding their exercise of rights, (...)

In any case, and following the complaint to the AEPD, on February 26, 2024, a letter was sent again to the complainant regarding their exercise of rights, again indicating the personal data that Movistar had: (...)

That is to say, the specific data that Telefónica had was indeed conveyed to them. In any case, screenshots with information from internal systems are again provided so that the AEPD can verify the truthfulness of the information provided to the complainant: (...)

In any case, it is important to highlight that at this time the complainant does not have any contracted service. Specifically, they have not had any service since February 2022.”

Furthermore, the responding party recounts the facts related to the issues regarding the acquisition of a device.

FOURTH: After examining the document submitted by the responding party, it is forwarded to the complainant, so that, within ten working days, they may submit any allegations they deem appropriate, without making allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the Spanish Data Protection Act (LOPDGDD).

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the

LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this transfer did not allow for the understanding that the complainant's claims were satisfied. Consequently, on March 22, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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It is also taken into account what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to what is established in Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be understood as granted if the controller provides remote access to the data, considering the request as fulfilled (although the data subject may request the information referred to in the

aspects provided in Article 15 of the GDPR):

“1. The data subject shall have the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, if so, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged retention period for the personal data or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;

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h) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and expected consequences of such processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 related to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless they request that it be provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for it. Furthermore, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

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The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data itself, and information about the processing. The data subject may also obtain a copy of the personal data being processed; however, this possibility is not an additional right of the data subject, but rather a means of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the requesting individual is being processed; second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

17.1.1.1. Confirmation of whether or not personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects need to know is whether the data controller is processing data concerning them. Therefore, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the requesting individual, the data controller must confirm this fact to that individual. This confirmation may be communicated separately or may be included as part of the information about the personal data being processed (see below).

2.2.1.2 Access to the personal data being processed

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Aside from basic personal data, such as name and address, an unlimited variety of data may be

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included in this definition, provided that they fall within the material scope of the GDPR, particularly regarding the manner in which they are processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not merely a general overview of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions are applied, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting individual initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in full. Consequently, when the data controller processes data relating to the data subject, the data controller shall provide all the information referred

to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

2.3.1 Completeness of the information

35. Data subjects have the right to obtain, with the exceptions mentioned below, the complete disclosure of all data relating to them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, the request to exercise the right of access shall be understood in general terms, covering all personal data relating to the data subject. Limiting access to part of the information may be considered in the following cases:

a) The data subject has explicitly limited the request to a subset. To avoid providing incomplete information, the data controller may only consider this limitation of the data subject's request if it can be sure that this interpretation corresponds to the will of the data subject (for more details, see section 3.1.1, para. 51). In principle, the data subject will not have to repeat the request for the transmission of all data that the data subject has the right to obtain.

b) (...)

42.1.1. Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information on other matters, including general information about the data controller, its business models, or its processing activities unrelated to personal data, will not be considered a request submitted in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requesting individual or the individual on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

45. Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to a natural person through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows their identification, or when the data controller can connect the data to the requesting individual by their own means, must be considered within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51. Furthermore, the data controller must assess whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally require "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only

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the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, regarding the specified data, to have access to the source or origin of the personal data or the specified storage period. In such a case, the data controller may limit their response to the specific information requested."

In the present case, and taking into account the provisions of the first paragraph of this legal basis, from the examination of the documentation provided, it has been established that the claimant requested access to their personal data and that the respondent only provided part of that data (name, ID number, and address) without informing them about the rest of the access elements (origin, recipients, retention periods...).

Regarding the statements made by the respondent indicating that "(...) at this time the claimant does not have any contracted service. Specifically, they have not had any service since February 2022," it should be noted that when exercising the right of access, it cannot be accepted that, by deleting the personal data, relying on the regulations, the right of access exercised is left unanswered.

In this regard, it should be noted that personal data subject to the blocking modality means that their processing is not allowed, but it does not imply that the personal data that the controller had and processed while the contractual relationship lasted cannot be made available to the affected party, in case, as happens in the present case, responsibilities arising from their processing could arise.

According to the personal data protection regulations, the deletion of data, as established in Article 32 of the LOPDGDD, must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified their processing, will not automatically imply their physical deletion. This action is subject to certain conditions intended to ensure and guarantee the affected party's right to the protection of their personal data.

The blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the personal data protection authorities, for the requirements of possible responsibilities arising from the processing and for the statute of limitations of these.

Therefore, the access request must be addressed in accordance with the provisions of Article 15 of the GDPR. The request made obliges the controller to provide an express response in any case, using any means that justifies the receipt of the response.

As a consequence of the above, it is appropriate to uphold the claim presented as the right of access to personal data has been addressed incompletely, as it was limited to the identifying data of the claimant,

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without providing the rest of the requested data, nor the information provided for in Article 15 of the GDPR, nor has it been explained, in their case, the reason for not providing them.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. as it is considered that the provisions of Article 15 of the GDPR have been infringed and to urge TELEFÓNICA DE ESPAÑA, S.A.U. with NIF A82018474, to send the claimant a certification that addresses the requested right in accordance with the provisions of this resolution within ten working days following the notification of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to TELEFÓNICA DE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National

Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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